



SPONSOR: Sen. Pettyjohn & Rep. Jones Giltner
Sens. Buckson, Hocker, Lawson, Richardson, Wilson;
Reps. D. Short, Yearick

DELAWARE STATE SENATE
153rd GENERAL ASSEMBLY

SENATE BILL NO. 140

AN ACT TO AMEND TITLE 7 OF THE DELAWARE CODE RELATING TO THE DEPARTMENT OF NATURAL RESOURCES AND ENVIRONMENTAL CONTROL.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

1 Section 1. Amend § 6010, Title 7 of the Delaware Code by making deletions as shown by strike through and
2 insertions as shown by underline as follows:

3 § 6010. Rules and regulations; plans.

4 (a) The Secretary may adopt, amend, modify or repeal rules or regulations, or plans, after public hearing, to
5 effectuate the policy and purposes of this chapter-, excepting any such rules and regulations associated with Regulatory
6 Initiatives that limit sales of any motor vehicle currently permitted under the advanced Clean Car I regulations, adopted in
7 2014. No such rule or regulation shall extend, modify or conflict with any law of this State or the reasonable implications
8 thereof.

SYNOPSIS

This Act prohibits the Department of Natural Resources and Environmental Control from promulgating rules and regulations restricting the sale of fuel-powered cars, trucks, and SUVs in Delaware. This Act does not change the emission standards fuel-powered vehicles must currently meet. The provisions of this bill would be retroactive to March 1, 2023.

Author: Senator Pettyjohn